

Amendment No. 3 to HB1827

Butler
Signature of Sponsor

AMEND Senate Bill No. 2053

House Bill No. 1827*

by deleting subdivision (2) in § 7-51-2802 in Section 1 and substituting instead:

(2) "Nuisance quarry" means a proposed quarry that meets all of the following conditions:

(A) The real property on which the proposed quarry is to be established consists of less than two hundred (200) contiguous acres and is located within a county having a population of not less than fifty-four thousand eight hundred (54,800) and not more than fifty-four thousand nine hundred (54,900), according to the 2020 or a subsequent federal census; and

(B) The proposed quarry has setbacks of less than five hundred feet (500') between the boundary of active mining or extraction activity and any existing residential dwelling; and